

Schedule of assumed facts

WC/2024/227 · Shepherd · accompanying the letter of instruction · [DATE]

This schedule identifies, by source and paragraph, the facts referred to in Part B of the letter of instruction. **The documents themselves accompany it, complete and unmarked.** Where a passage is quoted, the quotation is exact.

A · FROM THE RESPONDENT'S RESPONSE TO THE NOTICE TO ADMIT FACTS, 18 FEBRUARY 2026

Paragraph numbers are those of the **Notice**. These are facts admitted by the respondent in the proceeding.

¶	Admitted fact
1	The break rostered between the shifts of 17 and 18 March 2024 was 7 hours . [CONFIRM]
3	The applicable minimum break is 10 hours , or 8 hours by written agreement. [CONFIRM]
5	The rostering was <i>"a rostering error that was accidentally made"</i> . [CONFIRM]
8	The accuracy of Switchboard contact information is critical to clinical handover and patient safety . [CONFIRM]
34	The general-practice entry of 16 November 2023 states: <i>"No psychological illness such as depression/ psychosis."</i>
35	The respondent holds no contemporaneous medical evidence prior to 2024 contradicting that entry.
38	Major Depressive Disorder was diagnosed on 13 February 2025 .
40	On 3 May 2024 payroll instructed the line manager to <i>"submit an AVAC to correct these shifts."</i>
41	The AVAC was not submitted until 28 May 2024 — a delay of 25 days .
46	On 21 May 2024 the line manager stated <i>"I am waiting payroll confirmation... as soon as I do get that confirmation, I will submit an AVAC."</i>
47	She had held the written payroll instruction since 3 May 2024 .

B · FROM THE LETTER OF THE CHIEF EXECUTIVE, METRO SOUTH HEALTH, 5 JUNE 2026

Item numbers are those of the letter. Read from source.

Item	What the letter records
1–2	Pre-upgrade SPOK records were not retained. "However, a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."
3(a)	<i>"All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant."</i>
3(c)	<i>"there have been no 'consequential' changes to operating procedures over the period requested."</i>
4	The requested fatigue risk assessment records do not exist . <i>"Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff..."</i>
5	<i>"The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard."</i>
7	The requested fatigue risk management register entries do not exist .
15	Enclosed: leave takings report for the Applicant, 19 March 2024 .

C · FROM THE ROLE DESCRIPTION — ADMINISTRATION OFFICER, SWITCHBOARD SERVICES (AO3)

Quoted from the employer's own document. Read from source.

Under	The position requires
Purpose	<i>"The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week."</i>

Under	The position requires
Key responsibilities	<i>“Participate in the Emergency Response process</i> by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, <i>strictly adhering to protocols and timeframes.</i>”
	<i>“Maintain call queues to minimum at all times.”</i> · <i>“The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned.”</i>
	<i>“Maintain discretion and exercise judgement</i> where necessary to resolve problems within the scope of your role; <i>in situations where precedence have not been set and procedures not defined.</i>”
	<i>“Ability to work effectively as an individual with limited supervision...”</i>
	<i>“Collate information and maintain Omnivista database and SharePoint</i> to ensure information held within Switchboard Services is accurate and appropriate.”
Mandatory requirements	<i>“The position is a continuous shift working role.</i> You must be able to work a roster which covers multiple shifts over a 24/7 period.”

D · FROM THE CERTIFICATE OF CAPACITY, 3 JULY 2026

The arrangement then in place is recorded as a “*continuation of existing arrangement ... worked and tolerated ... without deterioration.*” [CONFIRM the exact wording against the certificate]